

service is filed with the court.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

7. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. DOES 1 THROUGH 50, INCLUSIVE
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:

TENTATIVE RULING:

The declaration of Daniel Padova establishes that “No Kid Hungry” is a campaign of Share Our Strength, Inc., which “is a 501(c)(3) nonprofit organization focusing on child hunger programs.” It does not establish that it engages in “child advocacy.” Some description of what the organization does that constitutes “advocacy” is needed to meet the statutory requirement. If there is an advocacy component, it needs to be so stated. Not every charitable organization, no matter how laudable its work, meets the requirement. The **matter is continued to February 5, 2026, with a supplemental declaration to be filed by February 2, 2026.**

8. 9:00 AM CASE NUMBER: C23-03009
CASE NAME: RONALD ABBS, JR. VS. DAVID BOLES
***HEARING ON MOTION IN RE: TO APPOINT SPECIAL MASTER**
FILED BY: S&J PROPERTIES, CONSTRUCTION, INC.

TENTATIVE RULING:

Appearances required to update the Court on the status of the motion, given that a stipulated order appointing a special master was entered on November 21, 2025.

9. 9:00 AM CASE NUMBER: C24-00136
CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS
***HEARING ON MOTION IN RE: SANCTIONS 128.7, BY PLTF**
FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff’s Motion for Sanctions under CCP §§ 128.5 and 128.7.

For the reasons explained below, **Plaintiff’s Motion for Sanctions is denied.**

Procedural Background

Plaintiff filed his initial lawsuit against IHSS In-Home Support Services and individual County employees Julie Peck, Yen Ko-Young, Tracy Murray, Sena Pierce-Morris and Ann Barrett (“County Defendants”) on January 24, 2024. A first amended complaint (“FAC”) followed on October 16, 2024. On or around December 29, 2024, a process server for the plaintiff dropped off the FAC for all the individual County employee defendants with Stacey Boyd, a Deputy Clerk at the Contra Costa County Clerk of the Board’s office. Plaintiff then took their default on January 24, 2025.

On January 29, 2025, the County Defendants moved to set aside the default on the basis that they were not personally served by Plaintiff. In support of that assertion, a declaration from Stacey Boyd was submitted indicating she was not authorized to accept service on behalf of individuals, but she

could accept service on behalf of the County itself. (See Dec. of Ronald Deshawn Webster, Ex. A, ¶¶2-4.) This is the declaration on which Plaintiff bases his motion for sanctions.

Plaintiff filed a second amended complaint (“SAC”) on August 29, 2025, naming Stacey Boyd as a defendant in this matter and asserting a cause of action for negligence in allegedly providing incorrect information to the plaintiff regarding services, and signing the declaration in support of the County Defendants’ motion to set aside the default. None of the individual Defendants have appeared in this matter, although the Court does note that Defendant Ms. Boyd has filed a special motion to strike based on the litigation privilege which is set to be heard on March 12, 2026.

Legal Standard for Sanctions Under CCP § 128.5 and 128.7

CCP §128.7 applies to signed papers filed in court and requires that papers are not filed for improper purposes, claims are warranted by law, and factual contentions have evidentiary support, only an attorney or unrepresented party may be sanctioned. It does not authorize sanctions against a represented party.

CCP §128.5, the party, attorney, or both, may be sanctioned. “Second, section 128.7 imposes a lower threshold for sanctions against an attorney. It requires only that the conduct be objectively unreasonable. But under section 128.5, there must also be a showing of subjective bad faith.” (*In re Marriage of Reese & Guy* (1999) 73 Cal.App.4th 1214, 1221.) Notice for one section does not constitute notice under the other section. (Id.) In this matter, Plaintiff only makes passing reference to both sections, not expanding on the basis for his motion, making it difficult for respondents and the Court to determine which standard should be applied to this motion.

Analysis

Plaintiff’s Supporting Law and Facts are Insufficient

A memorandum of points and authorities “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal Rules of Court, Rule 3.1113.)

Applicable to this matter is *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, which dealt with the same deficiencies in pleading. The moving party in *Quantum* was LV. In a post-trial motion they “merely quoted the statutory provisions” requiring overturning the judgment. (Id. at 933.) However, apart from the cursory citations, the motion contained none of the elements that Rule 3.1113(b) requires. There was no statement of the facts of the case to support the motion, no identification of the specific evidence or arguments on which the challenge relied, and LV did not identify specifically how the record showed that the damage award was excessive. (Id.) In reviewing this dearth of fact and law, the Second District stated that “the trial court had no obligation to undertake its own search of the record ‘backwards and forwards to try to figure out how the law applies to the facts’ of the case.” (Id. at 934; See also *Chavez v. Netflix, Inc.* (2008) 162 Cal.App.4th 43, 51-52 [where appellant’s motion was supported by deficient memorandum, trial court was justified in denying the motion on procedural grounds].) The Quantum Court concluded that “Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (Quantum Cooking

Concepts, Inc., 197 Cal.App.4th at 934.)

In this motion, there is little to none of the required materials in the briefing in the scant three-page Memorandum of Points and Authorities. Plaintiff only cites to code sections 128.5 and 128.7, and not even to specific verbiage of the code sections. There are no citations to case law let alone discussions of case law, and no evidence is presented – only an assertion that evidence in support of the motion exists. (Webster Decl. ¶ 3.) The absence of legal authority and along with little to no factual or evidentiary support for the claimed relief, is enough to deny the motion.

Lack of Safe Harbor Period

Both CCP §§ 128.5 and 128.7 have a mandatory safe harbor provision where the Party intending to file for sanctions must serve the motion to the opposing side 21 days before filing it with the Court, allowing the other party to withdraw or correct the challenged document or conduct. (See CCP §§ 128.5(f) and 128.7(c)(2).) Plaintiff failed to demonstrate strict compliance with the mandatory safe harbor provision.

Conclusion

For the reasons analyzed above, **Plaintiff's Motion for Sanctions is denied.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

10. 9:00 AM CASE NUMBER: C24-00621
CASE NAME: LING TANDIAN VS. PRINCESS CRUISE LINES, LTD.
***HEARING ON MOTION IN RE: REQUEST FOR DISMISSAL**
FILED BY: TANDIAN, LING

TENTATIVE RULING:

Based on counsel's declaration, and without opposition, the **motion is granted.**

11. 9:00 AM CASE NUMBER: C24-01034
CASE NAME: TIYANA KIRBY VS. MAUREEN MICARIO MIRADOR
HEARING ON SUMMARY MOTION
FILED BY: MICARIO MIRADOR, MAUREEN

TENTATIVE RULING:

Before the Court is Defendant Maureen Micario Mirador ("Defendant" or "Mirador")'s motion for summary judgment ("MSJ"). The MSJ relates to Plaintiff Tiyana Kirby ("Plaintiff" or "Kirby")'s complaint for damages arising out of an auto accident. Defendant moves for summary judgment on the grounds that Plaintiff's claims are barred by a settlement and release she executed on October 26, 2023.

For the following reasons, the MSJ is **granted.**

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for